

Satish Chandra v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 6 December 2024 · 2024:AHC:191427-DB · Writ - C No. 40673 of 2024 · **Disposed with liberty to apply under clause 6.14; merits not examined.**

HEADNOTE

Writ petition for quashing a recovery citation and for twelve instalments of electricity dues disposed of. Petitioner given two weeks to apply to the Executive Engineer, Pashimanchal Vidhut Vitran Nigam Limited, Agra, under clause 6.14 of the U.P. Electricity Supply Code, 2005, for an instalment facility, to be considered and decided on its own merit. Petitioner may also avail any one-time settlement scheme. Merits of the citation not examined.

FACTUAL SUMMARY

Satish Chandra approached the Allahabad High Court against the State of Uttar Pradesh and Pashimanchal Vidhut Vitran Nigam Limited. A recovery citation dated 24 August 2024, issued by the Executive Engineer, was the subject of the writ. He asked that the citation be quashed and that he be permitted to deposit the electricity dues corresponding to his actual usage in twelve easy instalments. Counsel for the distribution licensee told the Court that an application seeking an instalment facility would be looked at by the Executive Engineer at Agra.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility against recovery citation

HOLDING

Where a consumer seeks quashing of a recovery citation and permission to pay electricity dues in twelve instalments, the writ is disposed of by leaving him to file, within two weeks, an application before the Executive Engineer under clause 6.14 of the U.P. Electricity Supply Code, 2005, together with a certified copy of the order. The Executive Engineer is to consider and decide that application on its own merit. The Court does not quash the citation or fix any instalment schedule, and the consumer may separately avail a one-time settlement if such a scheme exists. ¶ 3-6

PRINCIPLE TAGS

installment-payment-clause-6.14 The Court treated clause 6.14 as the route for an instalment facility: the writ challenging the 24 August 2024 recovery citation was disposed of on the licensee's statement that an application under that clause would be considered by the Executive Engineer on its own merit, without any examination of the citation. ¶ 3-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY CITATION DATED 24 AUGUST 2024, INCLUDING WHETHER LIABILITY IS CONFINED TO ACTUAL USAGE, WERE NOT EXAMINED.

¶ 6

NOT DECIDED — WHETHER ANY INSTALMENT SCHEDULE SHOULD BE GRANTED, AND WHETHER A ONE-TIME SETTLEMENT SCHEME EXISTS, WERE LEFT TO THE EXECUTIVE ENGINEER AND TO THE PETITIONER.

¶ 4-5

